

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index #
Date Filed:

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JINFEI PAN,

SUMMONS

Plaintiff,

The plaintiff designates
QUEENS COUNTY as the
place of trial.

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and ANIL JACOB.

The venue is based on
Plaintiff's Residence.

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer or, if the complaint is not served with summons, to serve a notice of appearance on Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: Flushing, New York
October 19, 2023

Yours, etc.,


BY: KENNETH ESEHAK, ESQ.
QLW LAW GROUP, P.C.
ATTORNEYS FOR PLAINTIFFS
37-02 MAIN STREET, 2nd FLOOR
FLUSHING, NEW YORK 11354
(212) 540-6788

Defendants' Addresses

CITY OF NEW YORK
Office of the Comptroller
Municipal Building
One Centre Street
New York, NY 10007

P.O. ANIL JACOB
1 Lefrak City Plaza
Queens, NY 11368
Shield No. 22372
Command: 047 Precinct

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
JINFEI PAN,

Index No.:

VERIFIED COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and ANIL JACOB.Defendants.
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Plaintiff, JINFEI PAN, by his attorneys, QLW LAW GROUP, P.C., complaining of the Defendants herein, respectfully alleges upon information and belief as follows:

1. At all times herein mentioned, Plaintiff, JINFEI PAN, was and still is a resident of the County of Queens, City and State of New York.

2. Defendant, CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD"), was and still is a mayoral department of Defendant CITY OF NEW YORK, duly organized and existing under and by virtue of the laws of the State of New York.

4. At all times herein mentioned, Defendant, ANIL JACOB, was and still is a resident of the County of Queens, City and State of New York.

5. At all times herein mentioned, Defendant, ANIL JACOB, was and still is a servant, agent and/or employee of Defendants THE CITY OF NEW YORK and NYPD.

6. That on September 30, 2022, a Notice of Claim herein, pursuant to statute as in such cases made and provided, was duly served on the office of the Comptroller, within ninety (90) days from the date of the accident and that said Defendant, CITY OF NEW YORK, has

failed, refused and neglected to make any adjustments and/or payments for thirty (30) days after the due presentation of the Notice of Claim.

7. That this action has been commenced within one (1) year and ninety (90) days after the cause of action accrued.

8. That a hearing pursuant to General Municipal Law Section 50(h), was held on December 20, 2022.

9. That, on or about August 31, 2022, Defendants, THE CITY OF NEW YORK and NYPD, were the owners of a 2019 Ford SUV bearing State of New York license plate number 497219.

10. That, on or about August 31, 2022, Defendant, ANIL JACOB, was the operator of the aforementioned 2019 Ford SUV bearing State of New York license plate number 497219.

11. That, on or about August 31, 2022, Defendant, ANIL JACOB, operated, controlled and maintained the aforementioned 2019 Ford SUV with the knowledge, permission and consent of Defendants THE CITY OF NEW YORK and NYPD.

12. That, on or about August 31, 2022, Defendant, ANIL JACOB, operated, controlled and maintained the aforementioned 2019 Ford SUV while in the course of his employment with the Defendants THE CITY OF NEW YORK and NYPD.

13. That, Laconia Avenue, at or near its intersection with East 221st Street, in the County of Bronx, City and State of New York, is a public highway and roadway used extensively by the public in general.

14. That, on August 31, 2022, Defendant, ANIL JACOB, while in the scope of his employment, operated the aforementioned 2019 Ford SUV along East 221st Street, in the County of Bronx, City and State of New York.

15. That on August 31, 2022, Plaintiff, JINFEI PAN, was lawfully operating a 2015 Honda SUV bearing State of New York license plate number KYC4576 at the aforesaid location, when he was struck by the motor vehicle of the Defendants, without Plaintiff contributing in any way thereto.

16. That on August 31, 2022, the Plaintiff was caused to sustain several severe bodily injuries as a direct result of the impact of being struck by the motor vehicle of the Defendants.

AS AND FOR A FIRST CAUSE OF ACTION

17. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the paragraphs of the Complaint designated "1" through "16" inclusive with the same force and effect as though said paragraphs were more fully and completely set forth herein at length.

18. That, as a result thereof, Plaintiff, JINFEI PAN, was caused to sustain a serious injury as defined under Section 5102(d) of the Insurance Law of the State of New York or economic loss as defined in subdivision (a) of Section 5102 of the Insurance Law.

19. That the said occurrence and serious injuries sustained by this Plaintiff, JINFEI PAN, were occasioned through the negligence of the Defendants, their servants, agents, and/or employees, in causing and permitting their motor vehicle to be operated in a negligent manner; in failing and omitting to have their motor vehicle under reasonable and proper control; in carelessly and negligently causing and permitting their motor vehicle to be operated over and along a public highway at a high and/or excessive rate of speed and/or a greater rate of speed than care and caution would permit under the circumstances then and there existing; in failing to be properly alert; in failing to make proper, prompt, and efficient use of adequate brakes and steering mechanisms; in failing to properly equip and maintain their motor vehicle; in failing to yield the right of way; in failing to properly train, hire and supervise their agents, servants, and/or

employees; in that the Defendants negligently allowed a person who it was known or should have know had propensity to drive carelessly and recklessly; in that the Defendants negligently allowed a person who it was known or should have know had propensity to drive in a negligent manner; in that the Defendants negligently allowed a person who it was known or should have know had propensity to be involved in and/or cause a motor vehicle accident; in causing, permitting, and allowing their motor vehicle to strike and collide the motor vehicle which the Plaintiff, JINFEI PAN, was operating.

20. Pursuant to CPLR 1602(6), this action is an exception to CPLR1601 and does not limit the liability of defendants' joint and several responsibilities.

21. That by reason of the foregoing incident, the Plaintiff, JINFEI PAN, was rendered sick, sore, lame, and disabled and his injuries, upon information and belief, are of a permanent character. That by reason thereof, he has been prevented from following his usual vocation and has been obliged to incur expense and obligations for medicines, medical care, medical attention, and medical treatment, and he is informed, and he verily believes, that he will, in the future, be obliged to incur expense and obligations for medicines, medical care, medical attention, and medical treatment and continuous pain and suffering and be unable to follow his current vocation, all to his damage in the sum exceeding the jurisdictional limits of all lower Courts that may have jurisdiction over this matter.

AS AND FOR A SECOND CAUSE OF ACTION

22. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the paragraphs of the Complaint designated "1" through "21" inclusive with the same force and effect as though said paragraphs were more fully and completely set forth herein at length.

23. That as a result of the Plaintiff JINFEI PAN's injuries, he will incur expenses greater than those defined as basic economic loss in Section 5102 of the New York State Insurance Law, to the extent that the expenses incurred, and other consequential losses suffered by Plaintiff that are not covered by the No-Fault Insurance benefits, Defendants shall be liable to Plaintiff to the full extent thereof.

WHEREFORE, Plaintiff, JINFEI PAN, demands judgment against the Defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and ANIL JACOB, in a monetary sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, altogether with interest and the costs and disbursements of this action.

Dated: Flushing, New York
October 17, 2023

YOURS, etc.,



BY: KENNETH ESEHAK, ESQ.
QLW LAW GROUP, P.C.
ATTORNEYS FOR PLAINTIFF
JINFEI PAN
37-02 MAIN STREET, 2nd FLOOR
FLUSHING, NEW YORK 11354
(212) 540-6788

INDIVIDUAL VERIFICATION

STATE OF New York
COUNTY OF Queens

I, JinFei Pan, being duly sworn, deposes and says, I am a plaintiff in the action; I have read the foregoing Summons & Complaint and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters, I believe it to be true.

X pan Jinfei

Sworn to before me this
19th day of October 2023

Keyla Macias
Notary Public

KEYLA MACIAS
Notary Public - State of New York
No. 01MA0011600
Qualified in Queens County
My Commission Expires 07/24/2027

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JINFEI PAN,

Plaintiff,

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-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and ANIL JACOB.

Defendants.
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VERIFIED COMPLAINT

QLW LAW GROUP, P.C.
Attorneys for Plaintiff

By: 
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